IN THE COURT OF THE METROPOLITAN MAGISTRATE
NEW DELHI DISTRICT, PATIALA HOUSE COURTS, NEW DELHI

CRIMINAL COMPLAINT NO. _____ OF 2026

IN THE MATTER OF: **... PETITIONER/ COMPLAINANT**

Ramesh Kumar
S/o Shri Satish Kumar,
R/o House No. 142, Sector-4, R.K. Puram,
New Delhi – 110022

VERSUS

1. Unknown Caller / Cyber Defrauder **... RESPONDENTS/ ACCUSED**
Mobile No.: +91 98765 XXXXX

2. Tech Solution Pvt. Ltd.
Through its Managing Director,
Plot No. 45, Cyber City, Gurugram, Haryana

PETITION / COMPLAINT UNDER SECTION 223 READ WITH SECTIONS 318(4) & 319 OF THE BHARATIYA NYAYA SANHITA (BNS), 2023 FOR REGISTRATION OF FIR AND RECOVERY OF FRAUDULENT FUNDS

MOST RESPECTFULLY SHOWETH:

1. That the Petitioner is a law-abiding citizen of India, residing at the address mentioned in the cause title above, and is currently employed as a Senior Accounts Manager at a private firm in New Delhi.

2. That Respondent No. 1 is an unknown individual operating as a cyber fraudster using fraudulently registered SIM cards, and Respondent No. 2 is an entity whose payment gateways and software tools were utilized to execute the illicit transactions described herein.

3. That on **10th August 2026**, at approximately 11:30 AM, the Petitioner received an urgent telephone call from Respondent No. 1, who deceptively impersonated himself as a Senior Branch Manager of State Bank of India, Main Branch, New Delhi.

4. That Respondent No. 1 informed the Petitioner that his primary savings bank account was flagged for immediate suspension due to pending mandatory KYC verification. Under the pretext of providing assistance, Respondent No. 1 induced the Petitioner to install a remote access application on his mobile device and click on a secure-looking web link.

5. That upon following the instructions given by Respondent No. 1 under undue pressure and deceit, an amount of **₹1,50,000/- (Rupees One Lakh Fifty Thousand Only)** was unauthorizedly and illegally debited from the Petitioner's bank account in three consecutive transactions of ₹50,000/- each within a span of seven minutes.

6. That the acts of the Respondents constitute clear criminal offences under the Bharatiya Nyaya Sanhita (BNS), 2023, specifically:

1. **Section 318(4) of BNS, 2023 (Cheating and dishonestly inducing delivery of property):** The Respondents dishonestly induced the Petitioner to transfer funds by deceptive representation.
2. **Section 319 of BNS, 2023 (Cheating by personation):** Respondent No. 1 fraudulently pretended to be a bank official to gain the trust of the Petitioner.

7. That despite lodging an immediate online grievance on the National Cyber Crime Reporting Portal (Acknowledgement No. 2026/CYBER/98123) and notifying the local police station, no formal FIR has been registered to date, thereby necessitating the filing of the present petition before this Hon'ble Court.

PRAYER

In light of the facts and circumstances stated hereinabove, it is most respectfully prayed that this Hon'ble Court may graciously be pleased to:

a. Pass an order directing the concerned Police Station / Cyber Crime Cell to register a formal FIR against the Respondents under Sections 318(4) and 319 of the Bharatiya Nyaya Sanhita (BNS), 2023;

b. Direct the concerned banking authorities and payment gateways to freeze the beneficiary bank accounts where the fraudulently transferred amount of ₹1,50,000/- was credited;

c. Direct the recovery and refund of the sum of ₹1,50,000/- to the Petitioner’s bank account; and

d. Pass any such other or further order(s) as this Hon'ble Court may deem fit and proper in the interest of justice, equity, and good conscience.

PLACE: NEW DELHI **PETITIONER**
DATE: 12 SEPTEMBER 2026

Through

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ADVOCATE FOR PETITIONER

VERIFICATION

I, Ramesh Kumar, S/o Shri Satish Kumar, aged about 38 years, R/o House No. 142, Sector-4, R.K. Puram, New Delhi, do hereby solemnly affirm and state on oath that the contents of paragraphs 1 to 7 of the above petition are true and correct to my knowledge derived from official records and personal experience, and nothing material has been concealed therefrom.

Verified at New Delhi on this **12th day of September, 2026**.

DEPONENT / PETITIONER